

22.	25CV1186	MICHAEL FISK ET AL VS. CONSTANCE ZUFELT ET AL
DEMURRER		

On May 22, 2026, Plaintiffs, Michael Fisk and Nancy Fisk (collectively "Plaintiffs"), and Defendant, Constance Zufelt, individually and as trustee of the Constance Faith Zufelt Revocable Living Trust ("Defendant"), filed a Stipulation agreeing that Plaintiffs may file a Second Amended Complaint. On July 24, 2026, the Court entered the Order granting Plaintiffs leave to file the Second Amended Complaint within five (5) court days after entry of the Order.

To date, Plaintiffs' Second Amended Complaint has not been filed with the Court. Defendant's Demurrer to Plaintiffs' Second Amended Complaint filed on July 31, 2026, is denied as premature.

TENTATIVE RULING #22:

DEFENDANT'S DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT IS DENIED WITHOUT PREJUDICE AS PREMATURE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.